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NITI Aayog

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SECTOR AT A GLANCE

Labour Codes

2023-Skilling, Livelihoods and
Labour Welfare-SAG-08

Skilling, Livelihoods and Labour Welfare Sector in India

Sector at a Glance

Labour Codes

Skilling, Livelihoods and
Labour Welfare Sector in India

The 'Sector-at-a-Glance' provides an easy-to-read overview and basic understanding of a sector, sub-sector or thematic area. The facts and insights on the sector are supported by relevant data and best practices from credible government and multilateral sources. The document covers the structure, key trends, opportunities and challenges, government initiatives, and the way forward for the sector.

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Overview

Labour is a subject under the Concurrent List of the Constitution of India. This implies that both the Central and State Governments have the authority to legislate on various aspects such as employment, working conditions at the workplace, minimum wages, social security, employee relations and dispute resolution. Accordingly, both, the Central and State Governments have enacted multiple labour laws to address the various dimensions of labour welfare and labour relations.

The post-independence period witnessed periodic amendments to the basic labour laws. The tendency towards legislative proliferation led to severe problems of definitional incompatibilities and administrative overlap and inefficiencies, all of which gave rise to a judicial nightmare. Although the need to harmonise and rationalise labour laws in India has been felt for a long time, only in the recent past have concrete steps been taken for their simplification and codification.

To simplify and streamline the complex and fragmented labour legislation system, the existing 29 central labour laws in India have been subsumed under four Labour Codes: the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Industrial Relations Code, 2020.

These reforms seek to protect the interests of the workers while facilitating investment, job creation and economic growth. More importantly, the reforms also aim to put in place a robust technology-enabled labour law governance architecture, which is considered pivotal to address enforcement gaps.

The Labour Codes have, *inter alia*, three principal features:

- Consolidation and consonance of the concepts and constructs of the law on each subject
- Convergence and direction to the entire meaning of labour laws in each code to secure the rights of the employees and employers
- Conjunction of the operational aspects for the simplification of compliances for employers, employees and the enforcement machinery.



CODE ON WAGES, 2019

- **Notified on 8 August 2019**
- Subsumes laws related to minimum wages, payment of wages, and bonus and equal remuneration



CODE ON SOCIAL SECURITY, 2020

- **Notified on 29 September 2020**
- Subsumes laws related to social security benefits (Provident Fund, Employee State Insurance, maternity benefits, employee compensation and gratuity), employment exchange, cine workers' welfare, building and other construction workers' welfare and unorganised workers' social security



THE INDUSTRIAL RELATIONS CODE, 2020

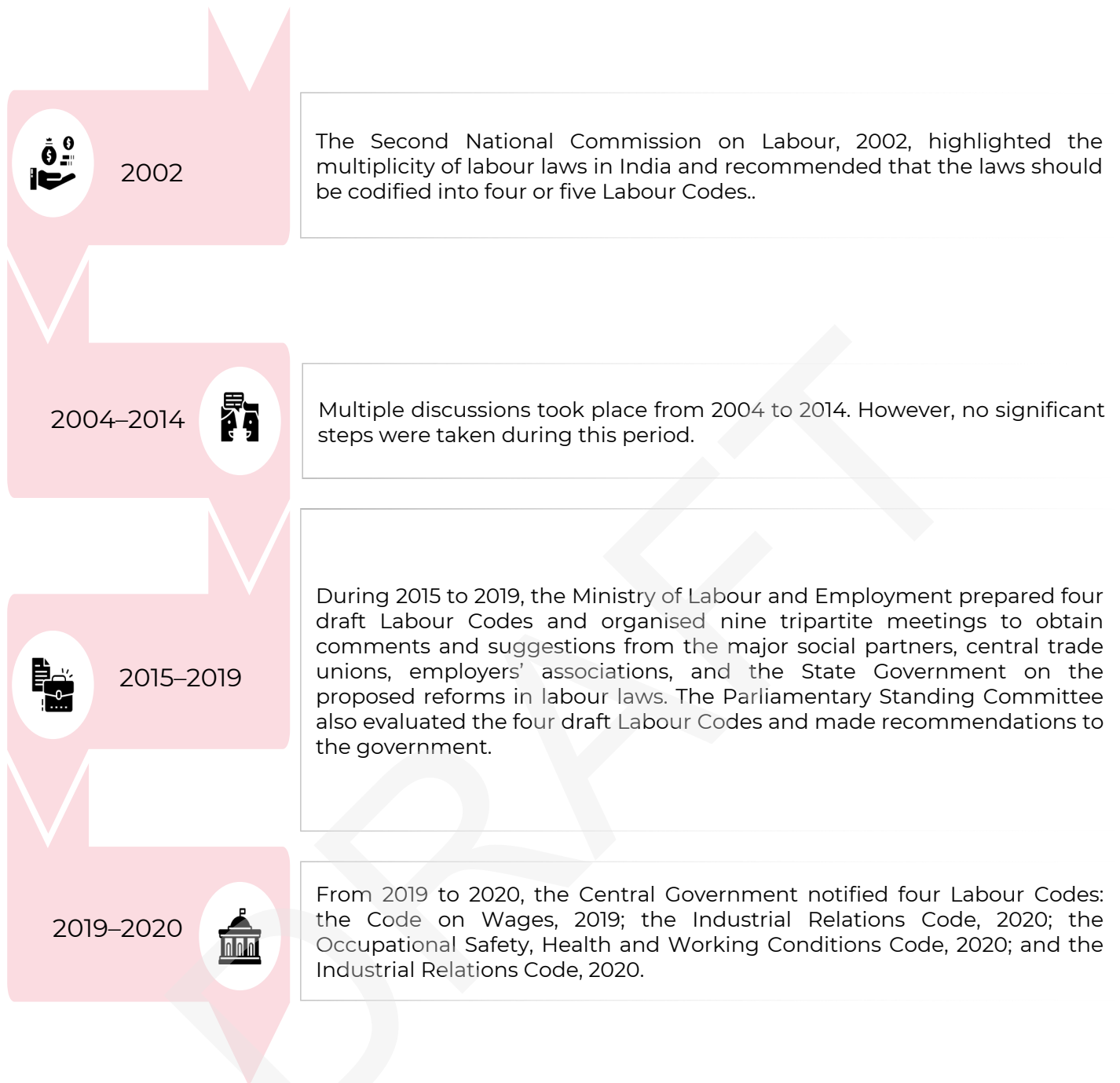
- **Notified on 29 September 2020**
- Subsumes laws related to industrial relations such as industrial disputes, trade unions and standing orders



OCCUPATIONAL SAFETY, HEALTH AND WORKING CONDITIONS CODE, 2020

- **Notified on 29 September 2020**
- Subsumes laws related to safety, health and working conditions at factories, docks, building and other construction sites, mines, and plantations and for contract labour, migrant workers and sales promotion employees.

Evolution of the Labour Codes ¹



Implementation of the Labour Codes can significantly impact the country's economy and requires strong enforcement measures and wide-ranging awareness. Accordingly, it is essential to balance the requirements of both employers and employees to prevent exploitation and guarantee equitable working conditions.

State Governments are presently involved in the process of finalising the draft rules. The Labour Codes will be implemented once all the rules are approved and adopted by the respective State Governments.

Salient features of the Labour Codes

1. Code on Wages, 2019

- **Uniform definition of 'wages':** This code provides a single uniform definition of 'wages' as related to minimum wages, payment of wages and payment of bonus.
- **Concept of floor wages:** It introduces the concept of a statutory 'floor wage', which will be set by the Central Government. States cannot set their minimum wages below the floor wage, ensuring a basic level of income for workers.
- **Full and final settlement:** Employer will have to complete the full and final settlement within two days after the employee has completed their last working day, backing their dismissal, resignation or termination.
- **Timely payment of wages:** Timely payment of wages, i.e. before the seventh of the succeeding month, and authorised deductions will be made applicable to all employees irrespective of the wage ceiling.
- **Conviction for sexual harassment a ground for disqualification:** Dismissal from service due to conviction for sexual harassment will also be considered as a ground for disqualification from the receipt of statutory bonus. This is a new addition to the disqualification from the bonus.
- **Limitation period:** This code provides a limitation period of three years (calculated from the date on which claims arose) to an employee for filing claims. It also allows the trade union to file claims on the behalf of employees who are members of the trade union.
- **Appointment of inspectors cum facilitators:** This code empowers the appropriate government to appoint inspectors cum facilitators in place of inspectors. These authorities have the dual functions of providing compliance advisory to employers and workers and conducting inspections. The employer or industry would now look at the inspector as also a facilitator to ensure appropriate compliances under the code.

2. Industrial Relations Code, 2020

- **Threshold limit of lay off and retrenchment increased:** The threshold limit for lay off and retrenchment of the workers (without obtaining prior government approval) has been increased from 100 to 300.
- **Introduction of a negotiating union and negotiating Council:** If an establishment has a trade union, there will be a negotiating union to negotiate with the employer of the industrial establishment on such matters as may be prescribed. The threshold limit for such negotiations is 51%; i.e. at least 51% of the workers should support such negotiations so they are recognised as sole negotiations under the Industrial Relations Code, 2020. In case the threshold limit is not met, the establishment is entitled to establish a negotiation council that consists of representatives of trade unions that have the support of at least 20% of the total workers.
- **Provisions for strikes:** The Industrial Relations Code mandates that a 60-day notice must be provided by a person employed in an industrial establishment before going on a strike, and it does not restrict the same to public utility services.
- **Introduction of the worker re-skilling fund:** The Industrial Relations Code provides for a worker re-skilling fund to be set up by the government, wherein the employer is required to contribute 15 days of wages last drawn by the worker before retrenchment.

3. Code on Social Security, 2020

- **Fixed-term employees to be eligible for gratuity:** Fixed-term employees are now ~~would be~~ eligible for gratuity on a *pro-rata* basis under the Code on Social Security.
- **Extended coverage under ESIC:** Coverage of the Employees' State Insurance Corporation (ESIC) benefits has been expanded to employees working in establishments with fewer than ten employees on both voluntary and mandatory basis through notification by the Central Government for employees working in hazardous industries. Additionally, the Central Government may frame schemes for self-employed workers, unorganised workers, gig workers and platform workers as well as members of their families to provide benefits admissible under ESIC.
- **Limitation period:** A limitation period of five years has been provided for the initiation of inquiry by the Employees' Provident Fund Organisation (EPFO) for assessment and determination of money dues from employers. Moreover, the Code on Social Security envisages a transparent and predictable system of assessment by the officers.
- **Provision of common crèche facility for establishments:** The Code on Social Security allows the establishment to avail the common crèche facility of the Central Government, State Government, municipality, private entity, non-governmental organisation or any other organisation or group of establishments that may pool their resources to set up a common crèche in the manner they may agree on for such purpose.
- **Social security for the unorganised sector:** To cater to new forms of employment, definitions of terms such as of aggregator, gig worker, platform worker and home-based worker have been introduced under the Code on Social Security. Moreover, the Central and State Governments will set up a Social Security Fund for unorganised workers, gig workers and platform workers. They will formulate such schemes from time to time for the benefit of these workers concerning their welfare on life disability cover, health and old age benefits, etc.

4. Occupational Safety, Health and Working Conditions Code, 2020

- **Annual check-up:** The employer will provide a free annual health check-up for employees above the specified age working in certain types of establishments.
- **Definition of 'inter-state migrant worker' widened:** The definition of 'inter-state migrant worker' has been widened to include a person who has come on his own from one state and obtained employment in an establishment of another state or has subsequently changed the establishment within the destination state. The earlier definition was quite restrictive and provided that a person who is recruited through a contractor in one state for employment in another state is an 'inter-state migrant worker'.
- **Toll-free helpline for inter-state migrant workers:** The government is required to provide the facility of a toll-free helpline to inter-state migrant workers in the manner prescribed. This would be a welcome step keeping in mind the problems faced by inter-state migrant workers during the COVID-19 pandemic.
- **Experience certificate to contract workers:** Contractors are ~~is~~ required to issue an experience certificate to each contract worker, detailing the work performed by such contract labour.
- **Mandatory issue of appointment letter:** Every employer will have to mandatorily issue an employment letter to all employees.
- **Night shift:** Women employees in all establishments covering all types of works are now entitled to work in the night, subject to their prior consent and adequate safeguarding.
- **Consent for overtime:** The employer will have to obtain written consent from the worker before making them work overtime.

Sub-sectoral trends

The Labour Codes in India represent a significant overhaul of the country's labour laws, aiming to address challenges and ensure the well-being of workers, particularly in the unorganised sector. These codes encompass various initiatives towards universalisation of coverage, a more inclusive and unified ecosystem, and enhanced good governance.

Universalisation of coverage:

One primary objective of the Labour Codes is to extend coverage to a broader spectrum of workers, including those in the unorganised sector, who were initially excluded from the coverage of many labour laws.

For instance, Labour Codes introduce a unified definition of 'wages', thereby reducing ambiguity and expanding the scope of applicability. Moreover, the Code on Social Security, 2020, integrates schemes related to the Employee Provident Fund, Employee State Insurance and other welfare funds, and it provides a comprehensive social security net by bringing diverse worker categories under a common umbrella. This broader coverage ensures that a more significant segment of the workforce, such as gig workers, platform workers and those in informal employment, can avail social security benefits.

Unified ecosystem:

The Labour Codes aim to create a unified ecosystem that promotes simplicity and transparency. For instance, the Industrial Relations Code, 2020, consolidates and amends laws related to industrial relations, making it easier for both employers and workers to understand their legal rights and obligations.

In addition, emphasis has been placed on mechanisms for the timely resolution of disputes through the introduction of web-based conciliation processes. This reduces the burden on the legal system, expedites dispute resolution and ensures that justice is accessible to workers without unnecessary delays.

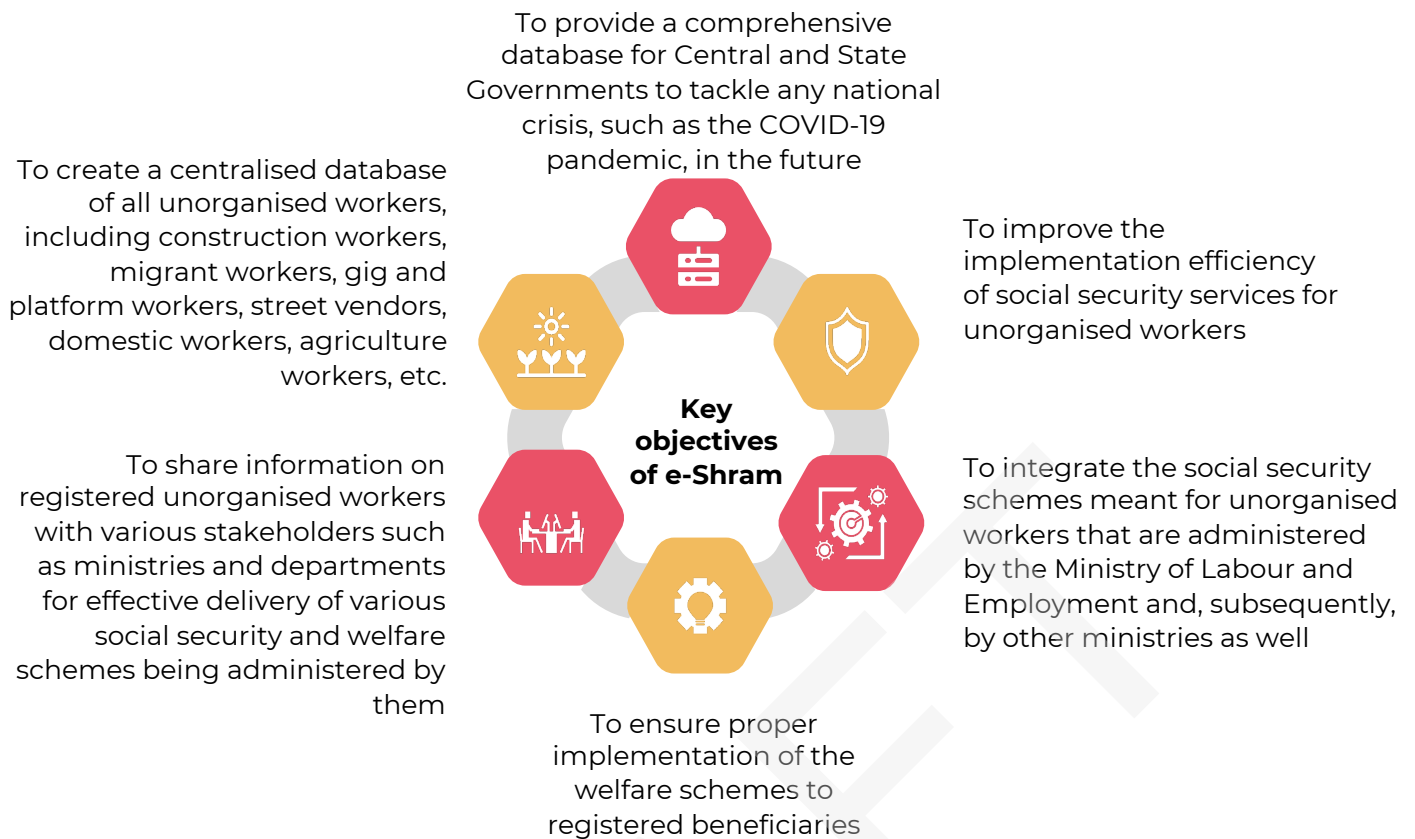
Enhanced good governance:

The Labour Codes also emphasise the importance of governance to ensure effective implementation and enforcement of labour laws. One notable initiative is the introduction of a single registration and licensing system for simplifying businesses' compliance procedures. This not only reduces bureaucratic hurdles for employers but also enhances efficiency, transparency and accountability in the administration of labour laws.

The unorganised sector has often faced considerable disparity in terms of access to social security benefits. As informal employment is prevalent, workers lack established mechanisms for safeguarding their entitlements. The Labour Codes have highlighted the need for a technology-based structure to improve governance and efficiency and reduce the potential for corruption and irregularity, in line with the operationalised principles of good governance.

Moreover, in line with the government initiatives to enhance good governance, the e-Shram Portal has been introduced to provide a comprehensive database of the unorganised workforce. This portal enhances not only transparency but also access to social security for the unorganised sectors. Figure 1 indicates the key objectives of the e-Shram Portal.

Figure 1. Key objectives of the e-Shram portal



Analysis of aspects related to key working conditions that are covered under the draft state and central rules under various Labour Codes²

In exercising the powers conferred under the Labour Codes, State Governments have published draft state rules while addressing unique socioeconomic factors within each state to ensure consistency and achieve a harmonious balance between central and state regulations, specifically regarding aspects related to the key working conditions.

Below are some of the select differentiating initiatives proposed to be adopted by the State Governments for the key working conditions:

The Code on Wages, 2019:

- Working hours and spread-over hours during a normal working day and in case of special specified conditions: The central rule provides for the spread over of 12 hours a day, while states such as Assam and Kerala restrict the spread over to ten and a half hours a day. However, states such as Chhattisgarh and Maharashtra have provisions of a spread over of ten and a half hours in case of employees of an establishment working six days a week and 12 hours in case of employees of an establishment working five days a week.

However, in case of certain specific or exceptional conditions, the spread over hours in a day may extend to 16 hours as per the central rule. Having said that, states such as Chhattisgarh, Kerala, Odisha and Punjab have restricted the spread over to 12 hours a day, and Tamil Nadu has restricted it to 14 hours a day. However, the states of Maharashtra and Haryana do not have any provision in this regard.

- Norms for fixing a minimum rate of wages: The central rule states that, while fixing the minimum rate of wages, the Central Government will divide the concerned geographical area into three categories: the (i) the metropolitan area, (ii) non-metropolitan area and (iii) the rural area. However, states such as Chhattisgarh has categorisation norms based on experience in the area of employment; level of skill required for working under the unskilled, semi-skilled, skilled and highly skilled categories; and the industry or cluster. Moreover, Uttar Pradesh provides classification based on the nature of work performed by the worker, such as in temperatures or humidity normally difficult to bear, hazardous occupations or processes, or underground work. In addition, states and union territories such as Andaman & Nicobar, Goa, Himanchal Pradesh, Jammu & Kashmir, Kerala, Maharashtra, Sikkim and Tripura provide different norms for fixation of minimum wages depending on their specific geographical areas.

- Time interval for the revision of dearness allowance: The central rule and most states' rules in this regard provide for revision of the dearness allowance twice a year based on the cost-of-living allowance and cash value of concession in respect of essential commodities; the state of Rajasthan has provisions for revisions based on the price index prepared by the Labour Bureau. However, Andhra Pradesh provides a revision only once a year, and the state of Uttar Pradesh does not have any rule in this regard.

b. The Code on Social Security, 2020:

- Number of employees and distance from crèche facility: The central rule states that any establishment where 50 or more women workers are regularly employed should provide and maintain at least one crèche for children under six years of age of those workers. The crèche should have adequate accommodation with proper lighting and ventilation, and it should be kept clean and hygienic. If the crèche is within the premises or at a distance from the premises, it should be easily accessible for the women workers, including women employees working remotely. Moreover, although section 155 of the Social Security Code, 2020, empowers only the Central Government to make rules on the number of employees and distance from the crèche facility, states such as Haryana and Uttarakhand have formulated rules in this regard. However, the rule of the state of Haryana seems more elaborate on the subject.
- Funeral expense: As per the central rule, if an injury to an employee results in that employee's death, the employer is obligated to deposit with the competent authority a sum of no less than INR15,000, or such amount as may be prescribed by the State Government for payment to the eldest surviving dependent of the employee towards the expenditure of that employee's funeral. Said amount must be deposited in addition to the compensation the employee is entitled to receive. However, in states and union territories such as Andaman & Nicobar, Haryana, Karnataka and Telangana, the amount ranges from INR20,000 to INR25,000. In addition, states such as Gujarat, Kerala, Maharashtra, Manipur and Uttarakhand have not made any rule in this regard. Moreover, the state of Telangana provides for additional payment of transport charges to be calculated by a competent authority within 12 hours of such incident and to be paid to the dependent of the employee by the employer.

c. The Occupational Safety, Health and Working Conditions Code, 2020:

- Spread overs in each day: In the central rule, if a worker works on a daily basis in an establishment, the period of work of such worker will be arranged so that, inclusive of the interval for rest, the period will not spread over for more than ten and half hours per day. However, the states of Andhra Pradesh, Haryana, Himachal Pradesh, Karnataka, Kerala, Manipur, Odisha and Uttarakhand provide the maximum spread over of ten and a half hours a day, which is similar to the central rule. The remaining states provide for the maximum spread over of 12 and a half hours a day, except the states of Gujarat and Uttar Pradesh, which do not have any rule in this regard.
- Annual health check-up of workers: As per the central rule, every employer is required to conduct free medical examination of every worker working in an establishment who has completed 40 years of age. The state rules of Haryana, Manipur and Odisha have a similar provision. The rule in the state of Uttar Pradesh additionally requires conducting a medical check-up before employing any person.

In addition, the state rule in Madhya Pradesh mandates conducting a medical examination for every worker above 30 years of age, which contrasts with the central rule. However, the rule in the states and union territories (UTs) of Assam, Bihar, Chandigarh, Gujarat, Himachal Pradesh, Jammu & Kashmir, Jharkhand, Karnataka, Ladakh, Tamil Nadu, Telangana and Uttarakhand prescribes the age limit of 45 years. On the contrary, the rule in the states of Chhattisgarh, Kerala and Punjab does not provide any age limit. Moreover, the state of Maharashtra does not seem to have any rule in this regard.

- Appointment letter: As per the central rule, no employee will be employed in any establishment unless that employee has been issued a letter of appointment in the prescribed format. That is, it should include the name of the employee; father's name; Aadhaar number; labour identification number of the establishment; universal account number or insurance number; designation; category of skill; date of joining; wages, basic pay and dearness allowance; other applicable allowances, including accommodation; avenue for achieving higher wages or position; applicable EPFO and ESIC benefits; health check-up; broad nature of duties to be performed; any other information; and signature of the occupier, employer, owner, agent and manager.

The rule of most states and UTs is similar to the central rule, and the format of the appointment letter is also quite similar. However, the rule in the states of Bihar and Jharkhand provides an additional requirement of 'the nature of employment' in the appointment letter. Moreover, the rule in the states of Haryana and Uttarakhand additionally provides for the 'state employment exchange registration number' (if any) or the 'employee distinct number or code'.

d. The Industrial Relations Code, 2020:

- Prescribed manner for the intended lay off of workers if not less than 300 workers are employed: As per the central rule, the employer must apply for permission in Form X to the Secretary, Ministry of Labour & Employment, stating clearly the reasons for the intended lay off before 15 days of such lay off. A copy of such application will be served simultaneously to the concerned worker electronically and by registered or speed post. The employer will also display such application conspicuously on a notice board or electronic board at the main entrance of the industrial establishment. The rule in this regard is similar in almost all states. However, the state of Andhra Pradesh does not stipulate a time period for advance submission of the application to the government.

The rule in the states of Chhattisgarh, Karnataka, Madhya Pradesh and Tamil Nadu also adds the requirement of serving a copy of the application for the intended lay off to the Conciliation Officer of the area. The rule in the state of Tamil Nadu also adds the requirement of submitting a copy of the application to the trade union.

The rule in the state of Uttar Pradesh also mentions the requirement of the employer taking measures to avoid lay off. The Central and State Governments may also consider incorporating this aspect in their respective rules.

- Notice of change: As per the central rule, any employer intending to effect any change in the conditions of service applicable to any worker regarding any matter specified in the Third Schedule to this Code will give notice in Form II to such worker affected by such change. A copy of this form will be provided to the Secretary of the registered trade union, if any, and the concerned Deputy Chief Labour Commissioner. The rules of the Central Government and most states and UTs in this regard are almost similar, with the exception of the states of Andhra Pradesh, Gujarat, Haryana and Odisha, which have no requirement of serving a copy of the notice to the Labour Department.
- Recognition of a single registered trade union as the sole negotiating union of workers: As per the central rule, where only one registered trade union operates in an industrial establishment, where its members constitute no less than 30% of the total workers employed in the industrial establishment, the employer of such industrial establishment will recognise such trade union as the sole negotiating union of the workers. However, some states and union territories, including Chandigarh, Ladakh and Maharashtra, have the requirement of 51% of the total workers employed. There is one more category of states, including Andhra Pradesh, Gujarat, Haryana, Jharkhand, Uttar Pradesh and Uttarakhand, with the rule requiring employers to recognise the trade union as the sole negotiating union. Moreover, the states of Goa, Himachal Pradesh and Punjab and the UT of Puducherry have not formed any rule in this regard.

Opportunities and challenges



Opportunities

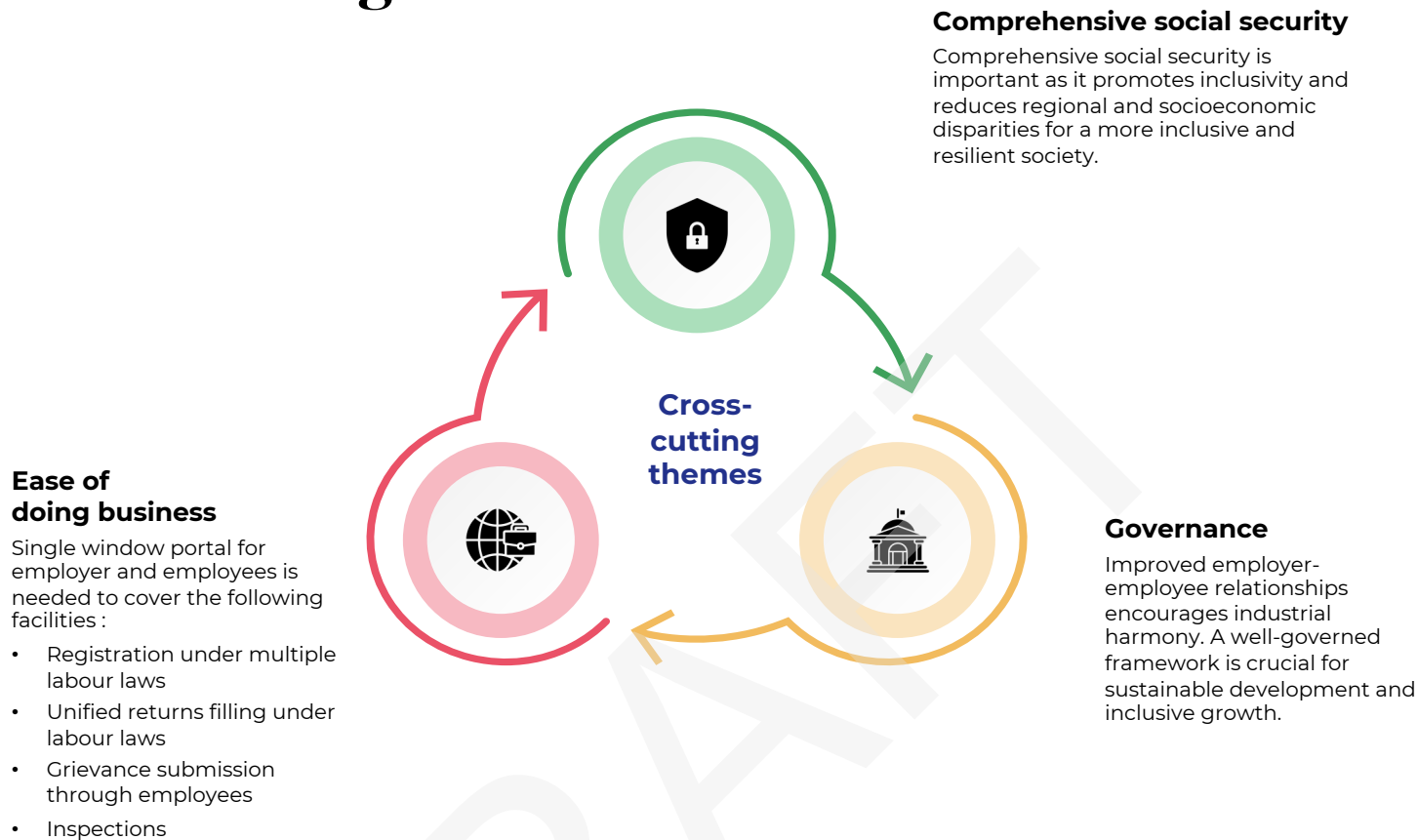
- Applicability of minimum wages has been extended to all employees, as against the employments covered in the schedules at present.
- Provisions are made related to timely payment of wages and authorised deductions from wages for all employees, as against those coming under the wage ceiling of INR24,000 at present.
- The Central Government has introduced the new concept of 'floor wage', ensuring a basic level of income for all employees and workers.
- The ESIC coverage has been extended pan India to all establishments employing ten or more employees, as against the notified districts and areas at present. Coverage of ESIC benefits has been expanded to employees working in establishments with less than ten employees on both voluntary and mandatory bases through notification by the Central Government for employees working in hazardous industries.
- Fixed-term employees are entitled to gratuity benefits upon completion of one year of continuous service.
- The Labour Codes provide the Central Government an opportunity to frame schemes for unorganised workers, gig workers and platform workers as well as members of their families to provide the benefits admissible under ESIC.
- The Occupational Safety, Health and Working Conditions Code, 2020, provides provisions related to the employment of women in night shifts, which promotes women employees' participation and contributes to gender equality in the workforce.



Challenges

- In terms of minimum wages, regular revisions have been made in the dearness allowance by State Governments. However, periodic revisions to the 'basic rate of wages' may ensure a better standard of living and increase the purchasing power of the workers.
- Though the social security coverage has been extended to the unorganised workers, gig workers and platform workers, adequate measures may be adopted by the government to extend the same to scheme workers such as accredited social health activist volunteers, Anganwadi volunteers and Mid-day Meal Scheme volunteers.
- The Code on Social Security, 2020, aims to provide wider coverage of social security to the working population at large. However, the applicability threshold under the Employees' Provident Fund and Employees' State Insurance has been retained as in the existing regulations, while leaving behind the working population of micro and small enterprises from the coverage of social security. Accordingly, appropriate measures and mechanisms may be adopted to enable the working populations of micro and small enterprises to avail social security benefits. This may require relaxing the applicability threshold limit under the provisions related to the Employees' Provident Fund and Employees' State Insurance.
- The Labour Codes entitle the payment of gratuity to fixed-term employees upon completion of continuous service of one year. However, the fixed-term employees are at a disadvantage, as the bargaining power to enter into a contract lies with the employer in terms of deciding the tenure of the contract. In case the employer decides to execute the contract for a period of less than one year, the fixed-term employees may not be entitled to receive the gratuity payment. Accordingly, adequate checks and balances may be adopted to ensure that, in cases of employment contracts that were executed by the employer for a tenure of less than one year but were further extended, such fixed-term employees may be entitled to the payment of gratuity considering the past tenure.
- The definition of 'worker' as provided under the Labour Codes has been retained in terms of the existing regulations, thereby excluding persons employed in a supervisory capacity with a wage threshold or persons employed in a managerial or administrative capacity. However, the terms 'supervisory', 'managerial' and 'administrative' may be explicitly clarified as they create room for ambiguity in categorising the workers.
- Under the Occupational Safety, Health and Working Conditions Code, 2020, the employer is required to obtain prior consent from the workers in case such workers intend to work overtime. However, appropriate clarifications may be provided in the rules detailing the manner, mode and frequency of taking such consent.

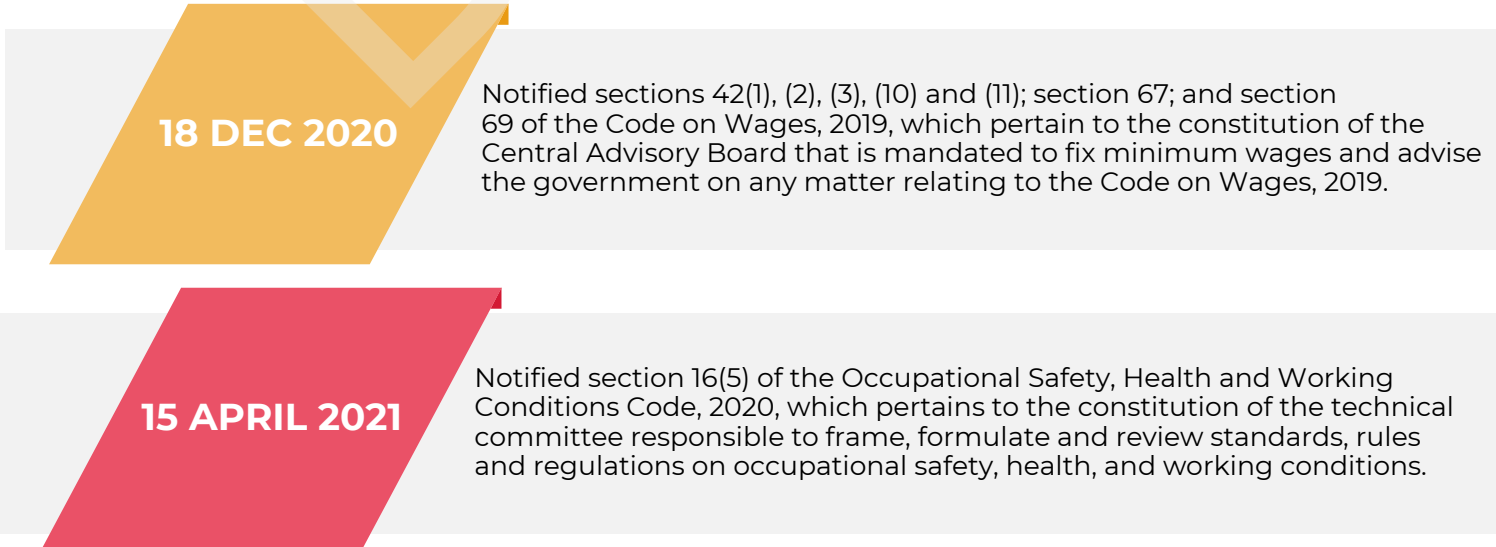
Cross-cutting themes



Government interventions

Pursuant to the notification of the Labour Codes, the Central Government has intervened to facilitate the enforceability of some of the sections of the Labour Codes. Figure 2 lists the enacted sections under the Labour Codes:

Figure 2. Government interventions



1 JUNE 2021

Notified section 142 of the Code on Social Security, 2020, relating to Aadhaar seeding, wherein the beneficiaries will establish their identity, or the identity of their family members or dependents, through the Aadhaar number.

3 MAY 2023

Notified section 15(3) in so far as it relates to the Employees' Pension Scheme, 1995; sections 16(1)(a) and (b); and section 16(2) of the Code on Social Security, 2020, pertaining to the Central Government's power to establish funds for the purpose of the Provident Fund Scheme, Pension Scheme and power of the appropriate government to exempt an establishment.

Way forward

The Labour Codes address the challenges faced by the industry and the working population by simplifying and streamlining the labour legislative system. However, the following indicative areas may be explored to further enhance the objective of the government in securing and protecting the interest of the workers and employers:



- A technology-based system for minimum wages may be implemented centrally with State Government access, where State Governments can regularly update minimum wage-related notifications. The portal will inform workers across the nation about their minimum wages and may help to strengthen their bargaining power and decision-making.
- Periodic revisions to the 'basic rate of wages' may help ensure a better standard of living and increase the purchasing power of the workers.
- A toll-free number may be introduced at the central and state levels to address workers' grievances on non-payment of the statutory minimum wages.
- Social protection may be broadened to include all workers such as social health activist volunteers, Anganwadi volunteers and Mid-day Meal Scheme volunteers.
- Measures may be implemented to facilitate the mapping and integration of various social security schemes introduced by the Central and State Governments with the e-Shram Portal. This will ensure equitable access to social security scheme benefits for unorganised employees registered on the portal.



- Appropriate measures and mechanisms may be adopted to enable the working populations of micro and small enterprises to avail social security benefits. This may require relaxing the applicability threshold limit under the provisions related to the Employees' Provident Fund and Employees' State Insurance.
- Adequate checks and balances may be adopted to ensure that, in cases where the employer has executed employment contracts for a tenure of less than one year but has further extended the contracts, the fixed-term employees may be entitled to the payment of gratuity considering the past tenure.



- Clarity should be provided in defining 'supervisory capacity', 'managerial capacity', and 'administrative capacity' to help businesses identify and differentiate between workers and employees.
- Appropriate clarifications may be provided in the rules detailing the manner, mode and frequency of taking such consent
- Effective social dialogue may be promoted at the national and state levels to ensure harmonious industrial relations.

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